

From : info@ethichawks.co.za

To : <Flsmaill@judiciary.org.za>

Cc : <tsoundy@judiciary.org.za>,<RDavid@judiciary.org.za>

Subject : RE: FOLLOW-UP:Allocation of Set-Down Date | Case No: 2026-077546 | W.W. Matthee vs. Afrocentric Health (RF) (PTY) LTD & Another

Date : 10 Jun 2026 12:33

Dear Registrar Ismail,

In re: Case No: 2026-077546 (Application for Default Judgment – Statutory Precedence)

Thank you for referencing the rules regarding general motion proceedings.

However, with respect, the general motion provisions under the Rules of this Honourable Court do not supersede the specific, explicit framework mandated for Default Judgments.

To ensure the record remains exact for the senior management copied herein:

The Core Rule: This application was brought and formatted strictly as an Application for Default Judgment.

The Default Status: The Respondents have failed to file any Notice of Intention to Oppose or Answering Affidavit within the 10-day statutory window, which expired on 29 April 2026.

The Registrar's Mandate: Where a party is in default of a defense, the matter bypasses standard motion roll configurations. The specific rule dictates that the Registrar must place the ripe, unopposed file before a Judge in Chambers or allocate it directly to the Unopposed Default Judgment Roll.

Forcing an applicant to navigate the protracted index-and-set-down architecture of ordinary motion proceedings when the corporate respondents have entirely waived their right to participate is procedurally incorrect and severely prejudices a vulnerable litigant.

The application papers, Practice Note, and Affidavit of Service filed on 30 April 2026 are fully compliant with the default judgment requirements.

I respectfully request that the file be processed according to its true legal nature as an undefended default application and placed before a Judge without further administrative detour.

Yours faithfully,

Sr Wilbur William Matthee
RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)
Founder – EthicHawks Forensic Governance & Compliance Consultancy
info@ethichawks.co.za | 069 635 1435
Developer – Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform
CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct
Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) – Pending Final Certification Modules
<https://www.ethichawks.co.za> | Cape Town, South Africa

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules

--- On Wed, 10 Jun 2026 11:24:31 +0200 Flsmaill@judiciary.org.za wrote ---

Dear Sir

I have attached the rules of the court , kindly refer to section 35 And 36 under motion proceedings.

Regards



From: Wilbur Matthee <info@ethichawks.co.za>
Sent: Wednesday, 10 June 2026 11:17
To: Farzaana Ismail <Flsmaill@judiciary.org.za>

Cc: Tsakani Soundy <TSoundy@judiciary.org.za>; Ruanne David <RDavid@judiciary.org.za>
Subject: RE: FOLLOW-UP:Allocation of Set-Down Date | Case No: 2026-077546 | W.W. Matthee vs. Afrocentric Health (RF) (PTY) LTD & Another
Importance: High

Dear Registrar Ismail,

In re: Case No: 2026-077546 (Unopposed Application for Default Judgment – BCEA s.34 / s.77A)

Thank you for your response dated 10 June 2026.

To clear up any administrative confusion regarding the record:

Nature of the Matter: This matter is a standalone statutory application brought in terms of Section 77A of the Basic Conditions of Employment Act (BCEA) for the recovery of an unlawful deduction. It is not an LRA referral, and therefore does not require a CCMA certificate of non-resolution to become ripe for default judgment.

As detailed in my correspondence of 8 May and 12 May 2026, the Respondents were served on 14 April 2026. Their 10-day opposition period expired on 29 April 2026 with zero opposition filed.

The Application for Default Judgment was formally filed on 30 April 2026 in terms of the Rules of this Honourable Court precisely because no defense was entered.

There is no external "outcome" to provide. The expected outcome is the allocation of a court date on the Unopposed Roll, or the submission of the ripe file to a Judge in Chambers for a final order, as requested in my application papers over 40 days ago.

Please ensure the file is correctly indexed as a ripe, unopposed BCEA application and placed before a Judge for determination without further administrative delay.

Please note that the status of this specific file and the tracking records associated with it have been included in the formal governance escalation dossier transmitted to the Director of Court Operations, Mrs. Ruanne David, and the Parliamentary Portfolio Committee this morning.

Yours faithfully,

Sr Wilbur William Matthee
RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)
Founder – EthicHawks Forensic Governance & Compliance Consultancy
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Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules

--- On Wed, 10 Jun 2026 09:08:09 +0200 Flsmail@judiciary.org.za wrote ---

Dear Sir

I have looked at your documents; your matter seems to be an application and not a referral. I also see that you have applied for default judgment. An application for default judgment is done in the case of a referral (when you have a referral certificate) , and the respondent fails to file a statement of case. Do you perhaps have an outcome ?

Regards



From: Farzaana Ismail
Sent: Tuesday, 12 May 2026 14:28
To: 'Wilbur Matthee' <info@ethichawks.co.za>
Subject: RE: FOLLOW-UP:Allocation of Set-Down Date | Case No: 2026-077546 | W.W. Matthee vs. Afrocentric Health (RF) (PTY) LTD & Another

Dear Sir

I have added your matter to the backlog , as soon as I get a chance to have a look at it , I will let you know if a date has been allocated or not.

Regards



From: Wilbur Matthee <info@ethichawks.co.za>

Sent: Tuesday, 12 May 2026 11:11

To: Farzaana Ismail <FIsmail@judiciary.org.za>

Subject: FOLLOW-UP:Allocation of Set-Down Date | Case No: 2026-077546 | W.W. Matthee vs. Afrocentric Health (RF) (PTY) LTD & Another

Importance: High

Dear Ms. Ismail,

I hope this email finds you well.

I am following up on my previous correspondence dated **08 May 2026** regarding the application for **Default Judgment** in the above-captioned matter.

As noted previously:

- The opposition period for the Respondents expired on **29 April 2026**.
- The application for Default Judgment was formally filed on **30 April 2026**.
- The matter remains **unopposed**, as no Notice of Intention to Oppose or answering papers have been served as of today's date.

This claim involves a liquidated amount of **R14,811.77** related to a contravention of **Section 34 of the BCEA**. Given that the matter is ripe for hearing, could you kindly provide an update on whether it has been allocated a date on the **Unopposed Roll** or if it has been placed before a Judge in Chambers for a final order?

I have re-attached the Notice of Application, Practice Note, and Affidavit of Service for your convenience.

Thank you for your time and assistance.

Yours Professionally,

Wilbur William Matthee

Applicant (Self-Represented)

Email: info@ethichawks.co.za

Tel: 069 635 1435

--- On Fri, 08 May 2026 12:29:50 +0200 info@ethichawks.co.za wrote ---

Dear Ms Ismail,

RE: APPLICATION FOR DEFAULT JUDGMENT – WILBUR WILLIAM MATTHEE // AFROCENTRIC HEALTH (RF) (PTY) LTD & ANOTHER (CASE NO: 2026-077546)

The above-captioned matter refers, in which the Applicant has filed an application for Default Judgment in terms of Rule 16 of the Labour Court Rules.

Please be advised of the following timeline regarding the ripeness of this matter:

Service Effected: 14 April 2026 (Deemed service per Rule 7).

Expiry of Opposition Period: 29 April 2026 (10 business days, accounting for the public holiday on 27 April).

Application Filed: 30 April 2026.

As of the date of this email, the Respondents have failed to file a Notice of Intention to Oppose or any answering papers. The matter is, therefore, unopposed and ripe for hearing.

This is a straightforward claim under Section 77A of the BCEA for the repayment of an unlawfully recovered amount of R14,811.77.

Given the liquidated nature of the claim and the clear contravention of Section 34 of the BCEA, the Applicant has requested a duration of approximately 10 minutes, or that the matter be considered for a final order in Chambers.

Could you kindly confirm if the matter has been allocated a date on the Unopposed Roll or if it has been referred to a Judge for consideration?

For your convenience, I have attached the following documents to this email:

Notice of Application for Default Judgment.

Applicant's Practice Note.

Affidavit of Service (confirming service to the Respondent's authorized email address).

I thank you for your assistance in this regard.

Yours Professionally,

Wilbur William Matthee
Applicant (Self-Represented)
Email: info@ethichawks.co.za
Tel: 069 635 1435

Disclaimer:

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